

Human Services (Complex Needs) Act 2009

Patient Details

Name	
NHS Number	

Instrument Date of delegation Birth

Address	
Telephone	
Mobile	
Email Address	
Preferred method of communication	SMS/ letter /email (please delete as appropriate)
Ethnicity	

Interpretation

In this instrument:

Act means the *Human Services (Complex Needs) Act 2009*.

Area Director means a Director with the word 'Area' in their title.

department means the Department of Health and Human Services in the State of Victoria.

functions and powers means the functions, powers and discretions (as the case may be) of the Secretary to the department under the provisions of the Act specified in column 1 of the Schedule.

limitations means the limitations or conditions, if any, respectively specified in column 4 of the schedule.

officers means the persons named in or for the time being holding, acting in or performing the duties of the respective offices or positions in the department specified in column 3 of the schedule.

Operational Division means each of the following divisions of the department: East Division, West Division, North Division and South Division.

schedule means the attached schedule to this instrument, which forms part of this instrument.

Service Agreement means any contract or agreement administered through the department's Service Agreement Management System (SAMS).

Description

The descriptions in column 2 of the attached schedule are for ease of reference only. They do not affect the interpretation of nor limit the delegation of the functions and powers contained in the statutory provisions specified in column 1 of the schedule.

Delegation

I, **Kym Peake**, Secretary to the Department of Health and Human Services, acting under section 6 of the Act:

(a) **DELEGATE** the functions and powers to the officers specified in column 3 of the schedule; and

(b) **REVOKE** the previous instrument of delegation made by the Secretary to the Department of Health and Human Services under the Act dated 15 April 2016.

Commencement

This instrument commences on the date it is signed.

Signed at Melbourne in the State of Victoria

This 17th day of July 2017

Kym Peake

Secretary

Department of Health and Human Services

Schedule

Source of authority/power: Patient Consent	<u>Human Services (Complex Needs) Act 2009</u>
Holder of power/function: I give permission for (insert proxy name) to have proxy access to my online services	<u>Secretary</u>
Authority type:I reserve the right to reverse any decision I make in granting proxy access at any time. I understand the risks of allowing someone else to have access to my health records. I have read and understand the information leaflet provided by the practice.	<u>Delegation</u>

<u>COLUMN 1</u> <u>Statutory provisions</u>	<u>COLUMN 2</u> <u>Descriptions</u>	<u>COLUMN 3</u> <u>Delegates/officers</u>	<u>COLUMN 4</u> <u>Limitations</u>
<u>Section 5</u>	<u>Consult with expert advisers</u>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	
<u>Section 8</u>	<u>Determine eligibility</u>	• <u>Deputy Secretary, Children, Families, Disability and Operations</u> • <u>Deputy Secretary, Operational Division</u>	

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<u>Section 9</u>	<u>Notify person before a determination is made</u>	• <u>Director, Client Outcomes and Service Improvement</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	
<u>Section 10</u>	<u>Notify person of determination of eligibility</u>	• <u>Director, Client Outcomes and Service Improvement</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	

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<u>Section 11</u>	<u>Enter into contracts for assessment of eligible persons and development of care plans</u>	• <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	
<u>Section 12(1)</u>	<u>Cause a care plan to be developed for an eligible person</u>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	

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<u>Section 12(2)</u>	<u>Engage a service provider to develop a care plan for an eligible person</u>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	
<u>Section 12(4)</u>	<u>Approve a care plan</u>	• <u>Director, Client Outcomes and Service Improvement</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	

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<u>Section 13</u>		<u>Develop a care plan, including:</u> <u>consult with certain persons and bodies</u> <u>comprehensively assess the person's needs</u> <u>obtain and consider relevant information</u>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	
<u>Section 14(1)</u>	<u>Seek to obtain information to develop a care plan</u> I wish to allow online access to: <i>Please tick all that apply</i>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>		

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Section 14(2)(a) ☐ Book appointments	<u>Disclose information for the development of a care plan</u>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u> • <u>Assistant Director, Individual and Family Support</u> • <u>Area Director</u> • <u>Manager, Individual and Family Support</u> • <u>Manager, Residential Client Services</u> • <u>Manager, Local Connections</u>		

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<u>Section 15</u>	<u>Give a copy of the care plan and notice to eligible person.</u> <u>Give a copy of the whole or part of a care plan to a service provider identified in the care plan.</u>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	
<u>Section 16(1)</u>	<u>Appoint a care plan coordinator</u>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	

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<u>Section 16(2)</u>	☐ <u>Request a report from a care plan coordinator</u> <u>medication</u>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>		
<u>Sections</u> <u>16 (3)(4)(5)</u> ☐ <u>View my Summary Care Record</u>	<u>Seek and obtain information from a care plan co-ordinator and other's providing services to eligible persons.</u> <u>Disclose information to a care plan co-ordinator.</u>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>		

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<u>Section 18(1)</u>	<u>Vary a care plan</u>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>		
<u>Section 18(1)</u>		<u>Terminate a care plan</u>	• <u>Director, Client Outcomes and Service Improvement</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	

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<u>Section 18(2)</u>	<u>Extend the duration of a care plan</u>	• <u>Director, Client Outcomes and Service Improvement</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	
<u>Section 18(4)</u>	<u>Notify in writing that a care plan has been terminated</u>	• <u>Director, Client Outcomes and Service Improvement</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	

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<u>Section 19</u>	<u>Receive a refusal to be considered for eligibility</u>	• <u>MACNI Coordinator</u> • <u>Manager, Complex Clients</u> • <u>Director, Client Outcomes and Service Improvement</u> • <u>Area Director</u> • <u>Deputy Secretary, Operational Division</u> • <u>Deputy Secretary, Children, Families, Disability and Operations</u>	

Patient Signature	
Signature	
Name	

Date	
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Proxy Access to Online Records – Proxy Agreement

Proxy Details	
Name	
NHS Number	
Date of birth	
Address	
Telephone	
Mobile	
Email Address	
Preferred method of communication	SMS/ letter /email (please delete as appropriate)
Ethnicity	

Proxy Agreement
I wish to have online access to the services authorised by (insert patient name)

~~I understand my responsibility for safeguarding sensitive medical information and I understand and agree with each of the following statements:~~

~~☐ I have read and understood the information leaflet provided by the practice and agree that I will treat the patient information as confidential~~

~~☐ I will be responsible for the security of the information that I see or download~~

~~☐ I will contact the practice as soon as possible if I suspect that this account has been accessed by someone without my/our agreement~~

~~☐ If I see information in the record that is not about the patient or is inaccurate, I will log out immediately and contact the practice as soon as possible. Any information which is not about the patient will be treated as being strictly confidential~~

~~Please both bring photo ID~~

~~Proxy Signature~~

~~Signature~~

~~Name~~

~~Date~~

~~For Practice Use Only:~~

~~Identity verified through~~

~~☐ Patient Photo ID (please specify)~~

~~☐ Proxy Photo ID (please specify)~~

Name of Verifier		Date	
Passed for scanning	☐ Yes — Name:		

Access to GP Online Services

Important Information — Please read before completing form. Please retain for your information.

If you wish to, you can now use the internet (via computer or mobile app) to book appointments with a GP, request repeat prescriptions for any medications you take regularly and look at your medical record online. You can also still use the telephone or call in to the surgery for any of these services as well. It's your choice.

It will be your responsibility to keep your login details and password safe and secure. If you know or suspect that your record has been accessed by someone that you have not agreed should see it, then you should change your password immediately. If you are unable to do this for some reason, we recommend that you contact the practice so that they can remove online access until you are able to reset your password.

If you print out any information from your record, it is also your responsibility to keep this secure. If you are at all worried about keeping printed copies safe, we recommend that you do not make copies at all.

During the working day it is sometimes necessary for practice staff to input into your record, for example, to attach a document that has been received, or update your information. Therefore, you will notice admin/reception staff names alongside some of your medical information — this is quite normal.

~~The definition of a full medical record is all the information that is held in a patient's record; this includes letters, documents, and any free text which has been added by practice staff, usually the GP. The coded record is all the information that is in the record in coded form, such as diagnoses, signs and symptoms (such as coughing, headache etc.) but excludes letters, documents and free text.~~

~~Before you apply for online access to your record, there are some other things to consider. Although the chances of any of these things happening are very small, you will be asked that you have read and understood the following before you are given login details.~~

Forgotten history

~~There may be something you have forgotten about in your record that you might find upsetting.~~

Abnormal results or bad news

~~If your GP has given you access to test results or letters, you may see something that you find upsetting to you. This may occur before you have spoken to your doctor or while the surgery is closed and you cannot contact them.~~

Choosing to share your information with someone

~~It's up to you whether or not you share your information with others—perhaps family members or carers. It's your choice, but also your responsibility to keep the information safe and secure.~~

Coercion

~~If you think you may be pressured into revealing details from your patient record to someone else against your will, it is best that you do not register for access at this time.~~

Misunderstood information

~~Your medical record is designed to be used by clinical professionals to ensure that you receive the best possible care. Some of the information within your medical record may be highly technical, written by specialists and not easily understood. If you require further clarification, please contact the surgery for a clearer explanation.~~

Information about someone else

If you spot something in the record that is not about you or notice any other errors, please log out of the system immediately and contact the practice as soon as possible.

For further information, please see:

www.nhs.uk/NHSEngland/AboutNHSservices/doctors/Pages/gp-online-services.aspx